

24NNCV06167 24NNCV06167

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-07-14

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[TENTATIVE] ORDER GRANTING PLAINTIFF YEELING KO'S MOTIONS TO COMPEL NON-PARTY A & W GROUP INVESTMENTS INC, AND GL LIGHTING SOLUTION INC TO COMPLY WITH DEPOSITION SUBPOENAS FOR PRODUCTION OF BUISNESS RECORDS and GRANTING MONETARY SANCTIONS

I. INTRODUCTION

This case concerns a dispute between the two shareholders and officers of Calpack International, Inc. Plaintiff Yeeling Ko ("Plaintiff"), Calpack's majority shareholder and CEO, filed a First Amended Complaint ("FAC") alleging that Defendant Gordon lu ("Defendant"), the company's minority shareholder, Secretary, and CFO, wrongfully excluded her from control over the business, financial records, and corporate assets. The FAC asserts causes of action for breach of contract, breach of the implied covenant of good faith and fair dealing, conversion, fraud, breach of fiduciary duty, and accounting.

On April 23, 2025, following an ex parte hearing, the Court issued a Temporary Protective Order ("TPO") prohibiting Defendant from transferring any funds from Calpack's bank accounts. On July 14, 2025, the Court granted Plaintiff's motion for a preliminary injunction, continuing that prohibition pending final judgment.

On May 22, 2026, Plaintiff filed two motions to compel compliance with deposition subpoenas for production of business records directed to nonparties GL Lighting Solution Inc. ("GL") and A & W Group Investments Inc. ("A & W"). No oppositions have been filed. Because the motions present identical legal and procedural issues, the Court addresses them in a single tentative ruling.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 1987.1, "the court, upon motion reasonably made [by a party] . . . may make an order . . . directing compliance with [a subpoena] upon those terms or conditions as the court shall declare . . ." (Code Civ. Proc. § 1987.1(a).) Likewise, pursuant to Code of Civil Procedure section 2025.480 subdivision (a), "[i]f a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production." (Code Civ. Proc. § 2025.480(a).) If a nonparty deponent, properly served with a deposition subpoena, fails to attend a deposition, the court may impose sanctions. (Code Civ. Proc. §§ 1987.2, 2020.240, 2025.440(b), 2025.480(j).)

III. ANALYSIS

Plaintiff moves to compel nonparties GL and A & W to comply with the deposition subpoenas for production of business records. Plaintiff also seeks monetary sanctions against each non party.

Procedural requirements

On February 25, 2026, Plaintiff issued deposition subpoenas for production of business records to GL and A & W seeking documents relating to lease agreements and related payments. Both subpoenas were personally served on March 2, 2026, requiring production by March 30, 2026. GL and A & W failed to produce documents, serve written objections, request extensions, or otherwise respond. (Motions, pp. 4-5.) On April 7, 2026, Plaintiff's counsel sent final notices requesting compliance within five business days, but neither nonparty responded. (Id. at p. 5.) Plaintiff thereafter timely filed the instant motions to compel compliance. The Court finds that the motions are procedurally proper.

Merits

Here, neither GL nor A & W objected to the subpoenas, moved to quash, or otherwise responded. Although Plaintiff followed up after the production deadline and requested compliance, neither nonparty produced any responsive documents or communicated with Plaintiff. Plaintiff represents that the requested records relate to lease agreements and payments that are relevant to the claims at issue in this action.

Plaintiff's counsel further declares that Defendant's counsel objected to the subpoenas by email and represented that Defendant intended to file a motion to quash. (Xu Decls., ¶ 20.) However, no motion to quash was ever filed. On this record, the Court finds good cause to compel GL and A & W to comply with the subpoenas. (Code Civ. Proc., § 1987.1, subd. (a).)

Sanctions

Plaintiff seeks monetary sanctions against GL and A & W pursuant to Code of Civil Procedure sections 2023.010 and 2023.030 for their failure to comply with the subpoenas. Plaintiff requests \$4,200.00 against GL and \$5,600.00 against A & W, representing attorney's fees incurred in preparing the motions. (Motions, p. 6.) Counsel declares that he spent 4 hours preparing the motion against GL and 6 hours preparing the motion against A & W at an hourly rate of \$350 and anticipates spending additional time preparing replies. (Xu Decls., ¶¶ 21, 24.)

The Court finds that monetary sanctions are warranted. Both nonparties failed to comply with properly served subpoenas or respond to Plaintiff's follow-up requests, necessitating these motions.

However, because no opposition was filed, the Court does not award anticipated reply time. The Court further finds the requested hours excessive given the straightforward nature of the motions and the substantial overlap between them. The motions are nearly identical and required minimal independent analysis.

The Court therefore GRANTS monetary sanctions against GL Lighting Solution Inc. in the amount of \$700.00, representing 2 hours of reasonable attorney time at counsel's hourly rate. The Court also GRANTS monetary sanctions against A & W Group Investments Inc. in the amount of \$700.00, likewise representing 2 hours of reasonable attorney time at counsel's hourly rate.

IV. CONCLUSION

The Court GRANTS Plaintiff's motions to compel compliance with the deposition subpoenas. GL Lighting Solution Inc. and A & W Group Investments Inc. shall produce all documents responsive to the subpoenas within 30 days of notice of this order.

The Court further GRANTS monetary sanctions against GL Lighting Solution Inc. in the amount of \$700.00 and against A & W Group Investments Inc. in the amount of \$700.00, payable within 30 days of notice of this order.

Plaintiff is to give notice.

Dated: July 14, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT